

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: July 27, 2015

TYPE OF DOCUMENT: (☒ ORDINANCE) (☐ RESOLUTION) (☐ PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (☐ LEASE/CONTRACT) (CHANGE ORDER/CONTRACT
MODIFICATION) (☐ CONSIDER BID) (APPLICATIONS/LICENSES/PERMITS)
(APPOINTMENTS) (☐ ANNOUNCEMENTS/REPORTS/MOTIONS) (☐ OTHER)

SPONSORS: (ORDINANCE OR RESOLUTION) Bryan Cook

EXACT WORDING FOR AGENDA: An ordinance pursuant to Sections 1.1.6 and 2.4.1(b) of the
Cheyenne Unified Development Code (UDC), amending Section 2.2.4.b Conditional Use
Approval Applicability.

(1% Sales Tax Funding/Years) N/A

(Other Funding _____) (Grant _____)

CONTACT PERSON: Stephanie Lowe PHONE: 637-6305 DEPT: Development

OTHER CITY DEPARTMENT AFFECTED: _____

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	☐	☐	☒
Were Bids called for?	☐	☐	☒
Affected parties notified of Council procedure and dates?	☐	☐	☒
Has bond, insurance or other security been arranged?	☐	☐	☒
Have legal descriptions been checked?	☐	☐	☒

Agenda Item approved / reviewed by :

Risk Mgr (☐) City Attorney (☐) Dept. Head (☒)

General Comments: The City of Cheyenne Planning Commission recommended approval of the
above described text amendment by a unanimous vote of 3 to 0 at its meeting on July 20, 2015.
See the attached Staff Report for more information.

Submitted by: Stephanie Lowe Title: Planner Date: July 22, 2015

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

Development Office

City Clerk's Office

Article 2.2.4 Conditional Use Approval

UDC TEXT AMENDMENT

CASE NUMBER: PLN-15-00010

PREPARED BY: Stephanie Lowe

MEETING July 20, 2015 – Planning Commission

DATES: July 27, 2015 – City Council

STAFF REPORT UPDATE: At its regular meeting Monday, July 20, 2015, the Cheyenne Planning Commission recommended approval of the above described Text Amendment by a unanimous vote of 3 to 0.

OVERVIEW

The Board of Adjustment hears conditional use approvals sometimes while projects are also going through Planning Commission regarding zone changes. In the past a project would need to be approved for the zone change by City Council before the Board of Adjustment (BOA) would hear the case to grant conditional use. This text amendment would allow a project to go before the BOA for conditional use while the zone change project is also being considered.

The proposed ordinance is attached to the staff report (Attachment 1).

PROPOSAL

This proposal allows the applicant the additional flexibility relating to the timing of how they want to pursue their conditional use review. While a project is pending a zone change approval by either the Planning Commission or City Council, the attached conditional use can be heard by the Board of Adjustment.

Section 2.2.4.b *Applicability* should be amended to read as follows:

"An application for a conditional use may be initiated by the property owner or authorized agent for use within an existing or pending zoning district permitted as "conditional" in these regulations."

POLICY CONSIDERATIONS

This would allow an applicant to receive a conditional use approval prior to and contingent on City Council approval.

RECOMMENDATION

Development Office Staff recommends approval of the UDC text amendment.

ATTACHMENTS

Attachment 1: Ordinance of proposed changes

Mark
Date: 7/21/15

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE PURSUANT TO SECTIONS 1.1.6 AND 2.4.1(b) OF
THE CHEYENNE UNIFIED DEVELOPMENT CODE (UDC),
AMENDING SECTION 2.2.4.b CONDITIONAL USE APPROVAL
APPLICABILITY."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF
CHEYENNE, WYOMING:

WHEREAS, the proposed amendments to the Cheyenne Unified Development
Code (UDC) that are the subject of this ordinance were presented to the City of Cheyenne
Planning Commission on July 20, 2015; a motion to approve the amendments that are the
subject of this ordinance was made and seconded; and the motion was approved by the
Planning Commission on a 3 to 0 vote.

Section 1. That UDC Article 2 is amended as follows:

- For Section 2.2.4.b *Applicability*:
"An application for a conditional use may be initiated by the property owner or
authorized agent for any use within an existing or pending zoning district
permitted as "conditional" in these regulations."

Section 2. That certain articles and section of the UDC are hereby amended as set
out in this Ordinance. Sections currently existing, not set out within this Ordinance
remain unchanged.

Section 3. Sections, paragraphs, sentences, clauses and phrases of this Ordinance
are severable. If any section, paragraph, sentence, clause, or phrase of this Ordinance is
declared unconstitutional, such unconstitutionality shall not affect any of the remaining
sections, paragraphs, sentences, clauses, and phrases.

Section 4. That this Ordinance shall be in full force and effect upon its approval
and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Richard L. Kaysen, Mayor

(SEAL)
ATTEST:

Carol Intlekofer, City Clerk